

3RD SCH.
—cont.

Reign and No.	Title
7 & 8 Geo. 6.: No. 1.	Reorganisation Areas Measure, 1944. In part, namely,— Section fifty-six and third Schedule.
8 & 9 Geo. 6.: No. 1.	The Emergency Legislation Measure, 1944. In part, namely,— Section ten.
No. 2.	Episcopal Pensions Measure, 1945. In part, namely,— Section nine.

CHAPTER 7

Diplomatic Privileges (Extension) Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Amendments of 7 & 8 Geo. 6. c. 44.
2. Provisions as to Orders in Council.
3. Short title, citation and repeal.

SCHEDULES:

First Schedule.—Amendments consequential on Section one (2) of this Act.

Second Schedule.—Subsections (1) and (2) of Section one of, and the Schedule to, the Diplomatic Privileges (Extension) Act, 1944, as amended.

Third Schedule.—Provisions of the Diplomatic Privileges (Extension) Act, 1946, repealed.

An Act to amend the Diplomatic Privileges (Extension) Act, 1944. [23rd May, 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments
of 7 & 8
Geo. 6. c. 44.

1.—(1) In subsection (1) of section one of the Diplomatic Privileges (Extension) Act, 1944 (which provides that that section shall apply to any organisation declared by Order in Council to be an organisation of which His Majesty's Government in the

United Kingdom and the government or governments of one or more foreign sovereign Powers are members) for the words " His Majesty's Government in the United Kingdom and the government or governments of one or more foreign sovereign Powers " there shall be substituted the words " the United Kingdom or His Majesty's Government therein and one or more foreign sovereign Powers or the government or governments thereof ".

(2) The provisions of the said Act of 1944 as amended by the Diplomatic Privileges (Extension) Act, 1946, relating to representatives of member governments on the governing body or any committee of an organisation to which section one of the first-mentioned Act applies and their official staffs shall extend to representatives (whether of governments or not) on any organ of such an organisation and members of any committee of such an organisation or of an organ thereof and their official staffs, and accordingly the consequential amendments specified in the First Schedule to this Act shall have effect. 9 & 10 Geo. 6.
c. 66.

(3) In the proviso to subsection (2) of section one of the said Act of 1944 as amended as aforesaid (which proviso provides that an Order in Council relating to an organisation to which the said section one applies shall not confer any immunity or privilege upon any person as the representative of His Majesty's Government in the United Kingdom or as a member of the staff of such a representative), for the words " shall not confer any immunity or privilege " there shall be substituted the words " shall be so framed as to secure that there are not conferred on any person any immunities or privileges greater in extent than those which, at the time of the making of the Order, are required to be conferred on that person in order to give effect to any international agreement in that behalf and that no immunity or privilege is conferred ".

(4) In accordance with the provisions of this Act, subsections (1) and (2) of section one of, and the Schedule to, the said Act of 1944 (as amended by the said Act of 1946 and this Act) shall have effect as set out in the Second Schedule to this Act.

2.—(1) A draft of any Order in Council proposed to be made under the Diplomatic Privileges (Extension) Act, 1944, after the passing of this Act shall be laid before Parliament and the draft shall not be submitted to His Majesty except in pursuance of an address presented by each House of Parliament praying that the Order be made. Provisions as
to Orders
in Council.

(2) Any power conferred by the said Act of 1944 to make an Order in Council shall be construed as including a power to revoke or vary the Order in Council by a subsequent Order in Council made in accordance with subsection (1) hereof.

(3) Neither subsections (1) and (2) of section two of the said Act of 1944 nor subsection (2) of section five of the Statutory Instruments Act, 1946 (which relate to the annulment of Orders in Council) shall apply to an Order in Council made under the said Act of 1944 after the passing of this Act, and subsection (4) of the said section two (which relates to the variation and revocation of Orders in Council) shall cease to have effect.

Short title,
citation
and repeal.

3.—(1) This Act may be cited as the Diplomatic Privileges (Extension) Act, 1950, and the Diplomatic Privileges (Extension) Acts, 1944 and 1946, and this Act may be cited together as the Diplomatic Privileges (Extension) Acts, 1944 to 1950.

(2) The provisions of the Diplomatic Privileges (Extension) Act, 1946, specified in the first column of the Third Schedule to this Act are hereby repealed to the extent specified in the second column of that Schedule.

SCHEDULES

FIRST SCHEDULE

AMENDMENTS CONSEQUENTIAL ON SECTION ONE (2) OF THIS ACT

1. In subsection (2) of section one of the Diplomatic Privileges (Extension) Act, 1944, as amended by the Diplomatic Privileges (Extension) Act, 1946, for the words "any person who is the representative of a member government on the governing body or any committee of the organisation", there shall be substituted the words "any persons who are representatives (whether of governments or not) on any organ of the organisation or are members of any committee of the organisation or of an organ thereof", for the words "the staffs of representatives of member governments", there shall be substituted the words "the staffs of such representatives and members as aforesaid" and for the words "representatives or officers" there shall be substituted the words "representatives, members or officers".

2. In paragraph 1 of Part IV of the Schedule to the said Act of 1944, as amended as aforesaid, for the words "the representative of a member government", there shall be substituted the words "a representative on any organ of the organisation or a member of any committee of the organisation or of an organ thereof" and after the words "a representative" there shall be inserted the words "or member".

SECOND SCHEDULE

SUBSECTIONS (1) AND (2) OF SECTION ONE OF, AND THE SCHEDULE TO, THE DIPLOMATIC PRIVILEGES (EXTENSION) ACT, 1944, AS AMENDED

A.—SUBSECTIONS (1) AND (2) OF SECTION ONE, AS AMENDED

(1) This section shall apply to any organisation declared by Order in Council to be an organisation of which the United Kingdom or His

Majesty's Government therein and one or more foreign sovereign Powers or the government or governments thereof are members.

2ND SCH.
—cont.

(2) His Majesty may by Order in Council—

- (a) provide that any organisation to which this section applies (hereinafter referred to as "the organisation") shall, to such extent as may be specified in the Order, have the immunities and privileges set out in Part I of the Schedule to this Act, and shall also have the legal capacities of a body corporate;
- (b) confer upon such number of officers of the organisation as may be specified in the Order, being the holders of such high offices in the organisation as may be specified in the Order, and upon such persons employed on missions on behalf of the organisation as may be so specified, and upon any persons who are representatives (whether of governments or not) on any organ of the organisation or are members of any committee of the organisation or of an organ thereof, to such extent as may be so specified, the immunities and privileges set out in Part II of the Schedule to this Act;
- (c) confer upon such other classes of officers and servants of the organisation as may be specified in the Order, to such extent as may be so specified, the immunities and privileges set out in Part III of the Schedule to this Act;

and Part IV of the Schedule to this Act shall have effect for the purpose of extending to the staffs of such representatives and members as aforesaid and to the families of officers of the organisation any immunities and privileges conferred on the representatives, members or officers under paragraph (b) of this subsection, except in so far as the operation of the said Part IV is excluded by the Order conferring the immunities and privileges:

Provided that the Order in Council shall be so framed as to secure that there are not conferred on any person any immunities or privileges greater in extent than those which, at the time of the making of the Order, are required to be conferred on that person in order to give effect to any international agreement in that behalf and that no immunity or privilege is conferred upon any person as the representative of His Majesty's Government in the United Kingdom or as a member of the staff of such a representative.

B.—THE SCHEDULE, AS AMENDED

PART I

Immunities and privileges of the organisation

1. Immunity from suit and legal process.
2. The like inviolability of official archives and premises occupied as offices as is accorded in respect of the official archives and premises of an envoy of a foreign sovereign Power accredited to His Majesty.
3. The like exemption or relief from taxes and rates, other than taxes on the importation of goods, as is accorded to a foreign sovereign Power.

2ND SCH.
—cont.

4. Exemption from taxes on the importation of goods directly imported by the organisation for its official use in the United Kingdom or for exportation, or on the importation of any publications of the organisation directly imported by it, such exemption to be subject to compliance with such conditions as the Commissioners of Customs and Excise may prescribe for the protection of the Revenue.

5. Exemption from prohibitions and restrictions on importation or exportation in the case of goods directly imported or exported by the organisation for its official use and in the case of any publications of the organisation directly imported or exported by it.

6. The right to avail itself, for telegraphic communications sent by it and containing only matter intended for publication by the press or for broadcasting (including communications addressed to or despatched from places outside the United Kingdom), of any reduced rates applicable for the corresponding service in the case of press telegrams.

PART II

Immunities and privileges of representatives, members of committees, high officers and persons on missions

1. The like immunity from suit and legal process as is accorded to an envoy of a foreign sovereign Power accredited to His Majesty.
2. The like inviolability of residence as is accorded to such an envoy.
3. The like exemption or relief from taxes as is accorded to such an envoy.

PART III

Immunities and privileges of other officers and servants

1. Immunity from suit and legal process in respect of things done or omitted to be done in the course of the performance of official duties.
2. Exemption from income tax in respect of emoluments received as an officer or servant of the organisation.

PART IV

Immunities and privileges of official staffs and of high officers' families

1. Where any person is entitled to any such immunities and privileges as are mentioned in Part II of this Schedule as a representative on any organ of the organisation or a member of any committee of the organisation or of an organ thereof, his official staff accompanying him as such a representative or member shall also be entitled to those immunities and privileges to the same extent as the retinue of an envoy of a foreign sovereign Power accredited to His Majesty is entitled to the immunities and privileges accorded to the envoy.

2. Where any person is entitled to any such immunities and privileges as are mentioned in Part II of this Schedule as an officer of the organisation, that person's wife or husband and children under the age of twenty-one shall also be entitled to those immunities and

privileges to the same extent as the wife or husband and children of an envoy of a foreign sovereign Power accredited to His Majesty are entitled to the immunities and privileges accorded to the envoy.

2ND SCH.
—cont.

THIRD SCHEDULE

PROVISIONS OF THE DIPLOMATIC PRIVILEGES (EXTENSION) ACT, 1946, REPEALED

<i>Provision</i>	<i>Extent of Repeal</i>
Section one ...	In subsection (1), the words from "and accordingly" to the end of the subsection.
Section two ...	Paragraph (a).
The Second Schedule ...	The whole Schedule.

CHAPTER 8

Distribution of Industry Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Acquisition of land and creation of easements.
2. Provision by agreement of facilities on land not owned by Board.
3. Further provision for grants and loans.
4. Payments towards cost of removal and resettlement of key workers and their dependants.
5. Payments and receipts.
6. Short title, interpretation, construction and citation.

An Act to make further provision for the acquisition of land, creation of easements and carrying out of work in development areas ; to authorise the Board of Trade to make grants in exceptional cases in connection with the establishment in, or transfer to, development areas of industrial undertakings, and to make grants or loans to housing associations for the provision of dwellings in development areas ; and to extend section five of the Employment and Training Act, 1948, in relation to persons transferred for employment in industrial undertakings established in, or transferred to, development areas.
[12th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The power of the Board of Trade under section one of the principal Act to acquire land for the purpose of facilitating the provision of such premises, sites and means of access as are Acquisition of land and creation of easements.